

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the “Agreement”) is entered into as of March 3, 2026 (the “Effective Date”) by and between **Northbay Analytics, Inc.**, a Delaware corporation (“Disclosing Party”), and **Vendor Counterparty LLC** (“Receiving Party”). Each party may disclose Confidential Information to the other in connection with evaluating a potential business relationship (the “Purpose”).

1. Confidential Information.

“Confidential Information” means any and all information disclosed by either party to the other, in any form whatsoever, whether or not marked, designated, or otherwise identified as “confidential,” including without limitation all business, technical, financial, customer, employee, and commercial information, and **any and all information that the Receiving Party observes, learns, derives, or otherwise becomes aware of, whether or not disclosed by the Disclosing Party.** The Receiving Party acknowledges that all information exchanged shall be presumed confidential in perpetuity. This Agreement contains no exclusions from the definition of Confidential Information.

2. Obligations of the Receiving Party.

The Receiving Party shall hold the Confidential Information in strict confidence and shall not disclose it to any third party. The Receiving Party shall use the same to perform the Purpose and for no other reason, except as expressly permitted in Section 3 below.

3. License and Use of Disclosed Materials.

Notwithstanding Section 2, the Disclosing Party hereby grants to the Receiving Party a **perpetual, irrevocable, worldwide, royalty-free, and fully sublicensable license to use, reproduce, modify, create derivative works from, and commercially exploit any Confidential Information disclosed under this Agreement,** including for the Receiving Party’s own product development, provided the underlying materials are not disclosed to the public verbatim. The Disclosing Party waives any claim of ownership over derivative works so created.

4. Term and Survival.

This Agreement shall commence on the Effective Date and shall continue in perpetuity. The confidentiality obligations set forth herein shall survive indefinitely and shall bind the Receiving Party, its successors, and assigns forever, with no right of termination by either party.

5. Indemnification and Liability.

The Receiving Party shall indemnify, defend, and hold harmless the Disclosing Party from and against any and all claims, losses, liabilities, damages, costs, and expenses (including attorneys’ fees) of any kind arising out of or relating to this Agreement, **including consequential, incidental, special, punitive, and exemplary damages, without any limitation of liability whatsoever and without regard to whether such damages were foreseeable.** The Receiving Party’s aggregate liability under this Agreement shall not be subject to any cap.

6. Governing Law and Dispute Resolution.

This Agreement shall be governed by and construed in accordance with the laws of the **Cayman Islands**, without regard to conflict-of-laws principles. Any dispute arising hereunder shall be resolved exclusively by binding arbitration seated in **George Town, Grand Cayman**, and the prevailing party shall be entitled to recover all costs. Each party irrevocably waives any right to a jury trial and any right to participate in a class or representative proceeding.

7. Additional Covenants.

During the term of this Agreement and for a period of **five (5) years thereafter**, the Receiving Party shall not, directly or indirectly, engage in, own, manage, or provide services to any business that competes with the Disclosing Party within any jurisdiction in which the Disclosing Party operates, nor shall the Receiving Party solicit or employ any employee or contractor of the Disclosing Party.

8. Assignment.

The Disclosing Party may freely assign this Agreement to any party at its sole discretion. The Receiving Party may not assign, delegate, or transfer any of its rights or obligations without the prior written consent of the Disclosing Party, which may be withheld for any reason.

9. Miscellaneous.

This Agreement constitutes the entire agreement between the parties concerning its subject matter and supersedes all prior discussions. No amendment shall be effective unless in writing and signed by both parties. If any provision is held unenforceable, the remaining provisions shall continue in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

NORTHBAY ANALYTICS, INC. VENDOR COUNTERPARTY LLC

By: _____ By: _____

Name: _____ Name: _____

Title: _____ Title: _____